

23STCV13465 23STCV13465

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C09%2F18%2F2026

Source SHA-256: afbbd1c6a1a2de2e6243e051fabf0b06009c98a5d6dd05a2cfefdf8abb275b0f

Case Number: 23STCV13465 Hearing Date: September 18, 2026 Dept: 512

HEARING DATE: Fri., September 18, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Merchain

v. LA Dodgers, LLC COMP.

FILED: 06-13-23

CASE NUMBER: 23STCV13465 SAC FILED: 01-21-26

NOTICE: NO

PROCEEDINGS: MOTIONS

TO QUASH SUBPOENA FOR BUSINESS RECORDS

MOVING PARTY: Plaintiff

Jamie Merchain; Non-Party Martin Kanarek

RESP. PARTY: Defendant Los Angeles Dodgers, LLC

MOTIONS TO QUASH SUBPOENAS

(CCP § 1987.1.)

TENTATIVE RULING:

Plaintiff Jaime Merchain's

Motion to Quash Deposition Subpoena for Production of Business Records Served

on Third-Party BD&J Law Firm; Motion to Quash Deposition Subpoena for

Production of Business Records Served on Third-Party Jacob Seropian, Esq.; Motion

to Quash Deposition Subpoena of Business Records Served on Third-Party Martin Kanarek, Esq.; and Motion to Quash Deposition Subpoena of Business Records Served on Third-Party the Barnes Law Firm are GRANTED IN PART.

The Motions are GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th items in the BD&J, Kanarek, and Seropian subject subpoenas.

Plaintiff is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the BD&J, Kanarek, and Seropian subpoenas.

Further, the Court holds that, pursuant to the parties' oral stipulation at the first hearing on the Motions, the definition of "Jaime Merchain" included in the BD&J, Kanarek, and Seropian subpoenas is to refer solely to Jaime Merchain and family members. Also pursuant to the parties' oral stipulation at the hearing on the Motions, the definition of "third-party" included in Request Nos. 8 in the BD&J, Kanarek, and Seropian subpoenas is to refer solely to Jaime Merchain's family members.

Non-Party Martin Kanarek's Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business Records to Kanarek for Privileged and Protected Records and/or Motion for Protective Order is GRANTED IN PART. The Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena.

Plaintiff is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the subpoena.

Further, the Court holds that, pursuant to the parties' oral stipulation, the definition of "Jaime Merchain" included in the subpoena is to refer solely to Jaime Merchain and family members. Also pursuant to the parties' oral stipulation, the definition of "third-party" included in Request Nos. 8 in the subpoena is to refer solely to Jaime Merchain's family members.

Moving parties are ordered to give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☐ Correct Address (CCP §§ 1013, 1013a) NO

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 23 & 24, 2026 ☒ Late [

] None

REPLY: Filed

on July 29, 2026 ☐ Late [

] None

ANALYSIS:

I.

Background

On January 21, 2026, Plaintiff Jamie

Merchain ("Plaintiff") filed a Second Amended Complaint ("SAC") against Defendant Los Angeles Dodgers, LLC ("Defendant") and Does 1-50, alleging causes of action for Premises Liability and Negligence. The underlying action involves Plaintiff tripping and falling over an "uplifted portion of raised asphalt, believed to have been caused by an uplifted tree root... positioned at/near the Centerfield entrance gate located in the Right Pavilion between the parking lot and Dodger Stadium on April 20, 2022.... The fall caused Plaintiff to suffer severe bodily injuries." (SAC, p. 2.)

On March 4, 2026, the Court held an Informal Discovery Conference.

On June 1, 2026, Plaintiff filed the instant Motion to Quash Deposition Subpoena for Production of Business Records Served on Third-Party BD&J Law Firm ("BD&J Motion"); Motion to Quash

Deposition Subpoena for Production of Business Records Served on Third-Party Jacob Seropian, Esq. ("Seropian Motion"); Motion to Quash Deposition Subpoena of Business Records Served on Third-Party Martin Kanarek, Esq. ("Kanarek Motion"); and Motion to Quash Deposition Subpoena of Business Records Served on Third-Party the Barnes Law Firm ("Barnes Motion") (the "Motions").

That same day, Non-Party Kanarek also filed the instant Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business Records to Kanarek for Privileged and Protected Records and/or Motion for Protective Order ("Kanarek's Motion").

On July 23, 2026, Defendants filed an Omnibus Opposition to the Kanarek Motion, Seropian Motion, and BD&J Motion.

On July 24, 2026, Defendants filed an Opposition to the Barnes Motion.

On July 29, 2026, Plaintiff filed Replies in support of the BD&J Motion, Barnes Motion, Kanarek Motion, and Seropian Motion. Plaintiff also filed a Supplemental Declaration in support of the Kanarek Motion, BD&J Motion, and Seropian Motion.

On August 5, 2026, the Court continued the hearing on the Motions to allow a privilege log to be produced regarding certain requests in the BD&J, Kanarek, and Seropian subpoenas and to file any supplemental briefing regarding the BD&J, Kanarek, and Seropian Motions. (8/5/26 Order.)

On September 1, 2026, the Court continued the hearing on Kanarek's Motion to allow a privilege log to be produced regarding certain requests in the subpoena and to file any supplemental briefing regarding the motion. (9/1/26 Order.)

On September 8, 2026, certain of the instant motions were continued to September 18, 2026. (9/8/26 Order.)

To date, no supplemental briefing regarding any of the instant motions has been filed.

II.

Procedural Issues

Plaintiffs' Motions

As an initial matter, there is no separate statement accompanying any of the Motions. (See Cal Rules of Court, rule 3.1345, subd. (a)(5).) Thus, the Motions are procedurally deficient.

Further, the Motions fail to include the electronic service addresses to which the Motions were served. However, given the Oppositions filed addressing all four Motions, the Court exercises its discretion to address the Motions on the merits.

Finally, the Court notes that the Court's reservation system states five motions are on calendar for the instant hearing date; however, the Court's docket reflects only four motions are substantively set for hearing on the instant hearing date. Plaintiff is cautioned to take care and avoid duplicate entries in making motion reservations in the Court's system.

The Oppositions

The Court notes Defendants' "Omnibus Opposition" is improper given the separate and distinct nature of the Motions. The Court also notes the Omnibus Opposition is just a memorandum of points and authorities and fails to include any evidentiary support.

Additionally, the Barnes Opposition is untimely filed and served under Code of Civil Procedure section 1005. However, given the Reply filed, the Court exercises its discretion to address the Barnes Opposition on the merits.

The Replies

Finally, the Court notes that the Reply to the Seropian Motion includes an argument improperly raised for the first time in the Reply brief – namely, the Seropian Subpoena was never served. (See Seropian Reply, p. 2.)

Kanarek's Motion

As an initial matter, the Court notes that the Viselman declaration accompanying the Motion states there are two exhibits attached to the Motion; however, no such exhibits are attached.

The Court notes Defendants' "Omnibus Opposition" is improper given the separate and distinct nature of the Motions. The Court also notes the Omnibus Opposition is just a memorandum of points and authorities and fails to include any evidentiary support.

III.

Legal

Standard

Code of Civil Procedure section

1987.1, subdivision (a) provides, in pertinent part, as follows:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1, subd.

(a).)

IV.

Discussion

A. Plaintiffs' Motions

Barnes Motion

Turning first to the Barnes Motion, the Court notes that Defendants, the moving parties for the subpoena in question, have stated a willingness to withdraw the subpoena as to Barnes. (See Barnes Opp.)

Based on the subpoenaing party's willingness to withdraw the subpoena, the Court GRANTS the Barnes Motion.

BD&J Motion, Kanarek Motion, and Seropian Motion

Next, the Court addresses the BD&J, Kanarek, and Seropian Motions. The Court addresses these motions together given that the subpoenas rendered to each non-party contain nearly identical requests; the Motions are nearly identical; the nature of each non-party is similar in kind in that they are all attorneys/law firms representing the same client in separate litigation – namely, Maria De Los Angeles Perez (see BD&J, Kanarek, and Seropian Motions, pp. 1-2, Koppelman Decls.); and Defendants filed an Omnibus Opposition to all three Motions.

Plaintiff moves to quash the subpoenas directed at third party BD&J, a law firm; third party Kanarek, an attorney from BD&J; and Seropian, an attorney, on the grounds the subpoenas are overbroad, seek irrelevant material, and seek communications and documents protected by the attorney-client privilege and work product privilege as well as the common interest doctrine. (BD&J, Kanarek, and Seropian Motions, pp. 4-8.) Further, Plaintiff contends Defendants have not shown good cause of direct relevance for the records sought in the BD&J, Kanarek, and Seropian subpoenas. (BD&J, Kanarek, and Seropian Motions, pp. 8-9.) Should the Court be disinclined to grant the Motions, Plaintiff requests the Court issue a protective order modifying and limiting the subpoenas. (BD&J, Kanarek, and Seropian Motions, pp. 8-9.) Finally, Plaintiff requests sanctions of \$2,500-\$4,000 be awarded against Defendants for each motion. (BD&J, Kanarek, and Seropian Motions, pp. 9-10.)

In the Omnibus Opposition, Defendants state Plaintiff has not met his burden to demonstrate the common interest doctrine applies in this case at all let alone to all the requested documents in the subpoenas. (Omnibus Opp., pp. 3-8.) Defendants further state the subpoenas are not fishing expeditions, and sanctions should not be awarded as the subpoenas

were issued in good faith and seek discoverable information directly relevant to the action. (Omnibus Opp., pp. 8-9.)

Here, the Court finds a majority of the BD&J, Kanarek, and Seropian subpoena requests are overly broad in scope. While the Court acknowledges there is some relevance to some of the subpoenas' requests as they seek information from witnesses to the underlying incident in this matter – namely, it is undisputed by the parties that Kanarek and Seropian were witnesses to Plaintiff's injury in the instant action (see Motions, Koppelman Decs.) – the subpoenas effectively ask for all communications and documents in each non-party's possession relating to the instant litigation or the non-parties' case with their client Perez. Given the sweeping nature of these requests, the Court finds the majority of the BD&J, Kanarek, and Seropian subpoenas are unduly burdensome and thus unenforceable. (See e.g., *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222-223.)

Further, the Court finds that to the extent the subpoenas request communications or documents between BD&J, Kanarek, or Seropian and their client, Perez, such requests violate the attorney-client and work product privileges. (See Evid. Code, § 952.)

Insofar as the subpoenas request communications between BD&J, Kanarek, and Seropian and Plaintiff's counsel in this matter regarding Plaintiff, Defendants, or this action, the Court proceeds to address the work product privilege and the applicability of the common interest doctrine in an abundance of caution.

The 'joint defense privilege' and the 'common interest privilege' have not been recognized by statute in California. [Citations.] For this reason, we will refer to the joint defense or common interest doctrine, rather than the joint defense or common interest privilege, to avoid suggesting that communications between parties with common interests are protected from disclosure by virtue of a privilege separate from the attorney-client privilege, the work product doctrine, or any other statutorily recognized evidentiary privilege.

...

[T]he party seeking to invoke the

doctrine must first establish that the communicated information would otherwise be protected from disclosure by a claim of privilege. For example, the content of the communication may comprise information shared in confidence by a client with his or her attorney, a legal opinion formed and advice given by the lawyer in the course of the attorney-client relationship, or a writing reflecting an attorney's impressions, conclusions, or theories. (See Evid. Code, § 952; Code Civ. Proc., § 2018, subd. (c).) The next step in the analysis is to determine whether disclosing the information to a party outside the attorney-client relationship waived any applicable privileges.

...

'There is no statutory provision governing waiver of work product protection. [Citation.]' [Citation.] However, California courts have recognized that the waiver doctrine is applicable to the work product rule as well as the attorney-client privilege. [Citation.] The work product protection may be waived 'by the attorney's disclosure or consent to disclosure to a person, other than the client, who has no interest in maintaining the confidentiality ... of a significant part of the work product.' [Citation.] Thus, work product protection 'is not waived except by a disclosure wholly inconsistent with the purpose of the privilege, which is to safeguard the attorney's work product and trial preparation.'

...

Thus, '[f]or the common interest doctrine to attach, most courts seem to insist that the two parties have in common an interest in securing legal advice related to the same matter—and that the communications be made to advance their shared interest in securing legal advice on that common matter.'

(OXY Resources California LLC v. Superior Court (2004) 115 Cal.App.4th 874, 889-891, as modified.)

Applying these principles to the instant circumstances, the Court finds the communications or documents sought by Defendants' subpoenas between the subject non-parties and Plaintiff's counsel meet the common interest doctrine requirements.

First, the subpoenas' requested

communications or documentations are so broadly phrased that they encapsulate protected attorney work product of both the non-parties and Plaintiff – e.g., writings reflecting an attorney's impressions, conclusions, opinions, legal research, or theories. (See Code Civ. Proc., § 2018.030.)

Indeed, the Court finds the requests here are broader than other requests where appellate courts have found a party's refusal to produce all requested documents to a nonparty law firm unjustified due to overbreadth. (See *Getz v. Superior Court* (2021) 72 Cal.App.5th 637, 657-658.) For example, in *Getz*, the Third District Court of Appeal found that the common interest doctrine only applied to some of the requested emails from defendant to a nonparty law firm, not all, and thus defendant's refusal to "produce the text of the 42,852 indexed emails" on grounds of overbreadth was unjustified. (*Id.*, at p. 657.) By contrast, the subpoena requests here fail to even specify the kind or manner of communications or documents sought from the subject non-parties and instead make sweeping requests that are impossible to meaningfully and narrowly distinguish or differentiate. As such, the Court finds the first requirement of the common interest doctrine is satisfied.

Next, both Plaintiff's counsel and BD&J, Kanarek, and Seropian in this matter have in common an interest in securing legal advice related to the same matter of their clients who suffered harm from an identical uplift on Defendants' property in close temporal proximity, and these communications to each other were made to advance their shared interest in securing legal advice and strategy on the common matter of Defendants' liability for the uplift. (See *id.*; BD&J, Kanarek, and Seropian Motion, pp. 6-7, Koppelman Decls.)

Further, the non-parties and Plaintiff's counsel did not waive the work product protection as each had an interest in maintaining the confidentiality of a significant part of the work product given that there was "pooled discovery, shared photographs and video, deposition strategy on common witnesses, and analysis of Defendant's policies" between the non-parties and Plaintiff's counsel that were exchanged to further "efficient and informed prosecution of overlapping claims." (BD&J, Kanarek, Seropian Motions, pp. 6-7, Koppelman Decls.; *OXY Resources California LLC*, *supra*, 115 Cal.App.4th at pp. 889-991.)

Accordingly, the Court finds Plaintiff

has satisfactorily shown the common interest doctrine applies to the communications and documents between the subject non-parties and Plaintiff's counsel sought by Defendants' subpoenas.

To the extent that Defendants state BD&J, Kanarek, and Seropian are required to produce at least some requested documents in response to the subpoenas or request an Evidence Code section 915 in-camera hearing with the Court regarding the alleged protected/privileged materials, the Court finds an overly broad and unduly burdensome subpoena does not warrant compliance. Further, the Court may not order disclosure of a communication claimed to be privileged to allow a ruling on the claim of privilege. (See *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 739.)

Finally, while a majority of the subpoena requests are overbroad and/or impermissibly infringe on privileges, the Court finds that certain of the subpoena requests warrant a privilege log. Specifically, the Court finds that Request Nos. 1, 8, 13, 14, 17, and 20 in the BD&J, Kanarek, and Seropian subpoenas warrant a privilege log to ascertain the validity of the asserted privilege claims.

For all these reasons, the
Motions are GRANTED IN PART.

The Motions are GRANTED as
to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in
all the subject subpoenas.

Plaintiff is to produce a
privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the BD&J,
Kanarek, and Seropian subpoenas.

B. Kanarek's Motion

Kanarek moves to quash the subpoena
directed at it on the grounds the subpoena seeks communications and documents
protected by the attorney-client privilege and work product privilege as well
as the common interest doctrine, and the subpoena imposes an undue burden on
Kanarek. (Motion, pp. 6-8.) Should the Court be disinclined to grant the
Motion, Kanarek requests the Court issue a protective order regarding the
subpoena. (Motion, p. 10.)

In the Omnibus Opposition, Defendants state Kanarek has not met the burden to demonstrate the common interest doctrine applies in this case at all let alone to all the requested documents in the subpoena. (Omnibus Opp., pp. 3-8.) Defendants further state the subpoena is not a fishing expedition, and sanctions should not be awarded as the subpoena was issued in good faith and seek discoverable information directly relevant to the action. (Omnibus Opp., pp. 8-9.)

Here, the Court finds the Kanarek subpoena requests are overly broad in scope. (See Motion, Sep. Statement.) While the Court acknowledges there is some relevance to some of the subpoena's requests as it seeks information from witnesses to the underlying incident in this matter, the subpoenas effectively ask for all communications and documents in Kanarek's possession relating to the instant litigation or the non-parties' case with their client Perez. Given the sweeping nature of these requests, the Court finds the Kanarek subpoena is unduly burdensome and thus unenforceable. (See e.g., *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222-223.)

Further, the Court finds that to the extent the subpoenas request communications or documents between Kanarek and their client, Perez, such requests violate the attorney-client and work product privileges. (See Evid. Code, § 952.)

Insofar as the subpoenas request communications between Kanarek and Plaintiff's counsel in this matter regarding Plaintiff, Defendants, or this action, the Court proceeds to address the work product privilege and the applicability of the common interest doctrine in an abundance of caution.

The 'joint defense privilege' and the 'common interest privilege' have not been recognized by statute in California. [Citations.] For this reason, we will refer to the joint defense or common interest doctrine, rather than the joint defense or common interest privilege, to avoid suggesting that communications between parties with common interests are protected from disclosure by virtue of a privilege separate from the attorney-client privilege, the work product doctrine, or any other statutorily recognized evidentiary privilege.

...

[T]he party seeking to invoke the doctrine must first establish that the communicated information would otherwise be protected from disclosure by a claim of privilege. For example, the content of the communication may comprise information shared in confidence by a client with his or her attorney, a legal opinion formed and advice given by the lawyer in the course of the attorney client relationship, or a writing reflecting an attorney's impressions, conclusions, or theories. (See Evid. Code, § 952; Code Civ. Proc., § 2018, subd. (c).) The next step in the analysis is to determine whether disclosing the information to a party outside the attorney-client relationship waived any applicable privileges.

...

‘There is no statutory provision governing waiver of work product protection. [Citation.]’ [Citation.] However, California courts have recognized that the waiver doctrine is applicable to the work product rule as well as the attorney-client privilege. [Citation.] The work product protection may be waived ‘by the attorney's disclosure or consent to disclosure to a person, other than the client, who has no interest in maintaining the confidentiality ... of a significant part of the work product.’ [Citation.] Thus, work product protection ‘is not waived except by a disclosure wholly inconsistent with the purpose of the privilege, which is to safeguard the attorney's work product and trial preparation.’

...

Thus, ‘[f]or the common interest doctrine to attach, most courts seem to insist that the two parties have in common an interest in securing legal advice related to the same matter—and that the communications be made to advance their shared interest in securing legal advice on that common matter.’

(OXY Resources California LLC v. Superior Court (2004) 115 Cal.App.4th 874, 889-891, as modified.)

Applying these principles to the instant circumstances, the Court finds the communications or documents sought by Defendants’ subpoena between Kanarek and Plaintiff’s counsel meet the common interest

doctrine requirements.

First, the subpoena's requested communications or documentations are so broadly phrased that they encapsulate protected attorney work product of both Kanarek and Plaintiff – e.g., writings reflecting an attorney's impressions, conclusions, opinions, legal research, or theories. (See Code Civ. Proc., § 2018.030.)

Indeed, the Court finds the requests here are broader than other requests where appellate courts have found a party's refusal to produce all requested documents to a nonparty law firm unjustified due to overbreadth. (See *Getz v. Superior Court* (2021) 72 Cal.App.5th 637, 657-658.) For example, in *Getz*, the Third District Court of Appeal found that the common interest doctrine only applied to some of the requested emails from defendant to a nonparty law firm, not all, and thus defendant's refusal to "produce the text of the 42,852 indexed emails" on grounds of overbreadth was unjustified. (*Id.*, at p. 657.) By contrast, the subpoena request here fails to even specify the kind or manner of communications or documents sought from the subject non-parties and instead make sweeping requests that are impossible to meaningfully and narrowly distinguish or differentiate. As such, the Court finds the first requirement of the common interest doctrine is satisfied.

Next, both Plaintiff's counsel and Kanarek in this matter have in common an interest in securing legal advice related to the same matter of their clients who suffered harm from an identical uplift on Defendants' property in close temporal proximity, and these communications to each other were made to advance their shared interest in securing legal advice and strategy on the common matter of Defendants' liability for the uplift. (Motion, pp. 6-7, Kanarek Decl.)

Further, Kanarek and Plaintiff's counsel did not waive the work product protection as each had an interest in maintaining the confidentiality of a significant part of the work product given that they shared communications "regarding matters including preservation of evidence, investigation of the dangerous condition, notice to the defendants, expert-related issues, litigation strategy, and liability analysis, to name a few." (Motion, pp., 6-7, Kanarek Decl.; *OXY Resources California LLC*, *supra*, 115 Cal.App.4th at pp. 889-991.)

Accordingly, the Court finds Kanarek

has satisfactorily shown the common interest doctrine applies to the communications and documents between Kanarek and Plaintiff's counsel sought by Defendants' subpoena.

To the extent that Defendants state Kanarek is required to produce at least some requested documents in response to the subpoenas or request an Evidence Code section 915 in-camera hearing with the Court regarding the alleged protected/privileged materials, the Court finds an overly broad and unduly burdensome subpoena does not warrant compliance. Further, the Court may not order disclosure of a communication claimed to be privileged to allow a ruling on the claim of privilege. (See *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 739.)

Finally, while a majority of the subpoena requests are overbroad and/or impermissibly infringe on privileges, the Court finds that certain of the subpoena requests warrant a privilege log. Specifically, the Court finds that Request Nos. 1, 8, 13, 14, 17, and 20 in the Kanarek subpoena warrant a privilege log to ascertain the validity of the asserted privilege claims.

For all these reasons, the Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena. Kanarek is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the subpoena.

V.

Conclusion
& Order

For the foregoing reasons, Plaintiff Jaime Merchain's Motion to Quash Deposition Subpoena for Production of Business Records Served on Third-Party BD&J Law Firm; Motion to Quash Deposition Subpoena for Production of Business Records Served on Third-Party Jacob Seropian, Esq.; Motion to Quash Deposition Subpoena of Business Records Served on Third-Party Martin Kanarek, Esq.; and Motion to Quash Deposition Subpoena of Business Records Served on Third-Party the Barnes Law Firm are GRANTED IN PART.

The Motions are GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th items in the

BD&J, Kanarek, and Seropian subject subpoenas.

Plaintiff is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the BD&J, Kanarek, and Seropian subpoenas.

Further, the Court holds that, pursuant to the parties' oral stipulation at the first hearing on the Motions, the definition of "Jaime Merchain" included in the BD&J, Kanarek, and Seropian subpoenas is to refer solely to Jaime Merchain and family members. Also pursuant to the parties' oral stipulation at the hearing on the Motions, the definition of "third-party" included in Request Nos. 8 in the BD&J, Kanarek, and Seropian subpoenas is to refer solely to Jaime Merchain's family members.

Non-Party Martin Kanarek's Motion to Quash LA Dodgers' Deposition Subpoena for Production of Business Records to Kanarek for Privileged and Protected Records and/or Motion for Protective Order is GRANTED IN PART. The Motion is GRANTED as to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in the subject subpoena.

Plaintiff is to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the subpoena.

Further, the Court holds that, pursuant to the parties' oral stipulation, the definition of "Jaime Merchain" included in the subpoena is to refer solely to Jaime Merchain and family members. Also pursuant to the parties' oral stipulation, the definition of "third-party" included in Request Nos. 8 in the subpoena is to refer solely to Jaime Merchain's family members.

Moving parties are ordered to give notice.